

5	30-2023-01336931 Gomez vs. Focus Industries, Inc.	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement has been transmitted to the State Controller's Office's Unclaimed Property Fund. As Plaintiff has shown that the Administrator's work is complete, the court's file is now closed. Plaintiff is ordered to give notice of this ruling to the LWDA, and to Defendants.
6	30-2023-01356309 Escobedo vs. Block Tops, Inc.	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement has been transmitted to the State Controller's Office's Unclaimed Property Fund. As Plaintiff has shown that the Administrator's work is complete, the court's file is now closed. Plaintiff is ordered to give notice of this ruling to the LWDA, and to Defendant.
8	30-2024-01410291 Ramirez vs. Arbitech, LLC	The tentative ruling is to continue the hearing on Plaintiff Melissa Ramirez's ("Plaintiff") Motion for Approval of Settlement Under Private Attorneys General Act ("PAGA") to October 5, 2026 at 1:30 p.m. There is an escalator clause in the settlement agreement, but this is a motion to have the settlement fully approved, and hence a specific gross settlement amount must be approved on the granting of this motion. At this point in time the parties should know or be able to determine the number of aggrieved employees and qualifying pay periods based on the PAGA Period the parties are using. The parties must provide the court with the cover letter that will be sent to aggrieved employees with their individual PAGA penalties payment. The cover letter must explain that no claims for unpaid or underpaid wages have settled, and that this settlement is without prejudice to the pursuit of any such claims.

		The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount or \$27,000.00, which the court finds fair, adequate and reasonable for the settlement of this size. Further, the court has insufficient information on the number of years of experience for timekeeper, Christine Noh. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. Counsel should propose a realistic Final Report Hearing date and include it in the [Proposed] Order and Judgment, taking into account the time deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The court usually sets these hearings nine months after settlement approval if the check cashing deadline is 180 days. The parties must report to the court the total amount that was actually paid to the aggrieved employees. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
9	30-2024-01411006 Andrade vs. NES Equipment & Service Corp.	Plaintiff Israel Gutierrez Andrade's ("Plaintiff") Motion for Approval of Settlement Under Private Attorneys General Act ("PAGA") is GRANTED. The court concludes that the \$162,500.00 PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • \$48,750.00 to plaintiff's counsel for plaintiff's attorneys' fees; • \$10,209.99 to plaintiff's counsel for plaintiff's litigation costs, as requested;